SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Criminal) No. 76 of 2016 **CNR: SCIN010000762016**

Date of Pronouncement: 06 September, 2018 *Citation: (2018) 10 SCC 1*

CORAM: Hon'ble Dipak Misra, C.J., R.F. Nariman, A.M. Khanwilkar, D.Y. Chandrachud,

Petitioner / Appellant: Navtej Singh Johar & Others

- VERSUS -

Respondent / State: Union of India through Ministry of Law and Justice

SUBJECT: CONSTITUTIONAL LAW & HUMAN RIGHTS **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Section 377 IPC, so far as it penalizes consensual sexual activity between adults, violates Articles 14, 15, 19 and 21 of the Constitution. Constitutional morality requires protection of individual autonomy and sexual orientation.

STATUTORY PROVISIONS INTERPRETED: Section 377 IPC, Article 14, Article 15, Article 19(1)(a), Article 21

FINAL DISPOSITION: SECTION 377 IPC DECRIMINALIZED FOR CONSENSUAL ADULTS

EXECUTIVE SUMMARY:

Five-judge Constitution Bench struck down Section 377 IPC insofar as it criminalized consensual sexual acts between adults in private, affirming constitutional morality over majoritarian or social morality.

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